

**FILL OUT ALL SECTIONS OF THIS FORM BEFORE FILING WITH THE COUNTY CLERK
AND FIDUCIARY CLERK/COURT – MUST BE COMPLETED WITHIN 30 DAYS OF SALE**

If this is an E-Filed case, upload this form to NYSCEF as a "Foreclosure Action Surplus Monies Form"

FORECLOSURE ACTION SURPLUS MONIES FORM

SUPREME COURT/COUNTY COURT OF THE STATE OF NEW YORK:

COUNTY OF QUEENS

BANK OF NEW YORK MELLON TRUST
COMPANY, N.A. AS TRUSTEE FOR MORTGAGE
ASSETS MANAGEMENT SERIES I TRUST

Plaintiff,

-against-

DARNELL SHEPARD, ET AL.

Defendant.

Index No. 711808/2015

MORTGAGED PROPERTY:

174-48 128TH AVENUE

SPRINGFIELD GARDENS, NY 11434

COUNTY: QUEENS

SBL #: Block 12524, Lot 49

Sale Date: June 05, 2026

A. To be completed by the Referee

1. Final Judgment Amount per Judgment: \$ 508,044.37

2. Adjusted Judgment Amount (Upset Price): \$ 611,518.80

(This is the total amount due to the bank after post-sale disbursements, fees, taxes, utilities, etc.)

3. Sale Price: \$ 611,518.80

(To calculate if there is a surplus, subtract the higher of line 1 or line 2 from line 3 and enter any surplus on line 4)

4. Surplus Amount (enter \$0.00 if no surplus) \$ 0

***If there are surplus funds, attach proof/receipt that the surplus amount was deposited with the Treasurer, Comptroller, Commissioner of Finance, Clerk of Court, etc.*

Referee's TOTAL compensation awarded/fees
earned in this matter:

\$ _____

Referee Name: Joseph F. DeFelice

Telephone: 718-261-3358

Address: 12510 Queens Boulevard, Suite 302, Kew Gardens, NY 11415

Email: jdefel4@gmail.com

Signature/Date: J. DeFelice 6/5/26

**If plaintiff is also the purchaser, complete both B. and C.*

B. To be completed by Plaintiff's Rep.

Name: Terence Gee

Address: 144-36 78th Avenue

Flushing, N.Y. 11367

Telephone: 917.324.2033

Email: _____

Signature/Date: T. Gee 6.5.26

C. To Be Completed by Purchaser

Name: Plaintiff

Address: _____

Telephone: _____

Email: _____

Signature/Date: _____

Additional Copies of this Form can be found at <https://www.nycourts.gov/forms/foreclosure/>